Playbook: Publicity and Reference Rights

SECTION 14: PUBLICITY AND REFERENCE RIGHTS

14.1 Preferred Position (Model Clause Language)
"Customer grants Northwind a non-exclusive, royalty-free, worldwide license to use Customer’s corporate name, standard trade logo, and business designation in Northwind’s promotional materials, client lists, digital investor decks, and public website, provided that such use conforms to Customer’s published trademark usage guidelines. Within forty-five (45) days of the Effective Date, the parties shall collaborate in good faith to draft and publish a joint press release concerning the execution of this Agreement. Furthermore, Customer agrees to: (a) participate in up to one (1) industry analyst briefing per contract year; (b) serve as a reference account for prospective enterprise clients up to two (2) times per contract year, subject to at least five (5) business days' prior written notice; and (c) permit Northwind to publish a mutually agreed case study detailing measurable deployment metrics within ninety (90) days following successful Go-Live."

14.2 Fallback Position
If Customer rejects the preferred position, legal counsel may agree to constrain publicity rights to logo usage and passive client listing only, provided the following terms are incorporated:
(a) Northwind may display Customer’s logo on the Northwind public website client roster and standard sales decks.
(b) All proactive press releases, case studies, analyst briefings, and reference calls are entirely deleted.
(c) Customer retains the unilateral right to revoke the logo license at any time upon thirty (30) days’ written notice to Northwind. Upon receipt of such notice, Northwind shall remove the logo from all digital assets within fifteen (15) business days and shall cease distribution of physical collateral at the end of the then-current print cycle, not to exceed ninety (90) days.
(d) Northwind shall not associate Customer’s name with any specific revenue figure, transactional volume, or proprietary performance metric without separate, advance written authorization from Customer’s designated corporate communications contact.

14.3 Walk-Away Position
Counsel shall reject any agreement that contains a blanket prohibition on all publicity and reference rights if the Annual Contract Value (ACV) is below one hundred fifty thousand dollars ($150,000), or if the Customer demands an upfront financial penalty or indemnification requirement for Northwind's inadvertent, non-conforming use of Customer's trademark. Specifically, the following counterparty positions require termination of negotiations if uncorrected after one escalation cycle:
(a) Demands for prior written consent for every individual instance of standard logo placement on a static web page after initial deployment.
(b) Refusal to permit logo usage unless Northwind pays a licensing fee or grants a reciprocal advertising discount against subscription fees.
(c) Inclusion of a cure period for trademark misuse exceeding ten (10) business days coupled with liquidated damages exceeding five thousand dollars ($5,000) per occurrence.

14.4 Thresholds and Operational Limits
(a) ACV Floor for Publicity Negotiations: Enterprise agreements with an ACV below fifty thousand dollars ($50,000) must utilize the Preferred Position without material modification; deviations below this threshold require formal justification.

(b) Notice Period for Reference Calls: Minimum advance written notice to Customer for any reference call or site visit is five (5) business days.
(c) Cure Period for Trademark Remediation: Northwind shall be afforded ten (10) business days from receipt of written notice to cure any alleged non-conforming use of Customer's trademarks or logos.
(d) Indemnification Cap for IP Misuse: Northwind’s aggregate liability arising out of or related to unauthorized trademark or publicity usage shall be strictly capped at two times (2x) the total fees paid by Customer under the applicable Order Form in the preceding twelve (12) month period.

14.5 Named Deviations and Escalation Protocol
The following specific deviations from the Playbook require written approval from the designated internal authority prior to contract execution:
(a) Exclusivity or Competitor Restrictions: Any clause prohibiting Northwind from listing Customer as a client because Customer operates in a sensitive sector (e.g., defense, rival SaaS vendor) must be escalated to Marcus Vance, VP of Global Sales.
(b) Pre-Publication Legal Review Requirements: Any requirement that Customer’s internal legal department must pre-approve all marketing copy, press releases, or social media posts on a recurring basis must be escalated to Elena Rostova, VP of Marketing.
(c) Sovereign or Public Sector Immunities: Any contract with a state, municipal, or federal entity that alters standard dispute resolution or remedies regarding intellectual property misuse must be escalated to Sarah Jenkins, General Counsel.

14.6 Worked Examples of Counterparty Language

Acceptable Counterparty Language (Example 1 - Fallback Tier):
> "Customer permits Northwind to display Customer’s standard corporate logo on the 'Our Customers' page of Northwind’s website, solely for the purpose of identifying Customer as a subscriber. Customer may withdraw this permission at any time upon thirty (30) days’ written notice, following which Northwind shall promptly remove the logo. No other marketing, press release, or reference rights are granted hereunder."
Analysis: Acceptable under Section 14.2. Retains passive logo display while stripping out press releases, case studies, and reference calls, backed by a clear 30-day termination mechanism.

Acceptable Counterparty Language (Example 2 - Customized Fallback):
> "Northwind may reference Customer as a client in standard sales presentations and proposal documents, provided that such reference does not disclose specific operational metrics, user counts, or contract values. Northwind shall ensure that all logo usage adheres strictly to the brand guidelines provided in Schedule F of this Agreement."
Analysis: Acceptable for accounts with an ACV between $50,000 and $150,000 where logo rights are contested but slide-deck inclusion is preserved.

Unacceptable Counterparty Language (Example 1 - Violates Walk-Away Thresholds):
> "Under no circumstances shall Northwind use Customer’s name, brand, logo, or trademarks in any public announcement, press release, customer list, or marketing collateral, whether online or offline, without the express prior written consent of Customer’s Chief Executive Officer for each individual usage instance."
Analysis: Unacceptable. This constitutes a blanket prohibition on basic reference rights coupled with an unmanageable executive-level sign-off requirement.

Unacceptable Counterparty Language (Example 2 - Financial Penalty Exposure):
> "If Northwind displays Customer’s logo without prior written authorization, or fails to remove said logo within forty-eight (48) hours of a written takedown request, Northwind shall pay to Customer liquidated damages in the amount of twenty-five thousand dollars ($25,000) per infraction, deductible from upcoming subscription invoices."
Analysis: Unacceptable. Violates the standard 10-day cure period threshold, introduces excessive liquidated damages, and permits unilateral invoice offsets.